

**BEFORE THE MAHARASHTRA
REAL ESTATE REGULATORY AUTHORITY, MUMBAI**

Virtual Hearing held through video conference as per
MahaRERA Circular No.: 27/2020

1. COMPLAINT NO. CC006000000171952

APARNAA FISCAL SERVICES PVT LTD ...COMPLAINANT
a/w

2. COMPLAINT NO. CC006000000182002

PRADEEP SINGH VALLIA ...COMPLAINANT
a/w

3. COMPLAINT NO. CC006000000182100

RAMNIWAS RANDE AND
KUSUM LATA RANDE ...COMPLAINANTS
a/w

4. COMPLAINT NO. CC006000000192231

PAWAN BAIRAGRA &
URMILA BAIRAGRA ...COMPLAINANT
a/w

5. COMPLAINT NO. CC006000000192293

FARZANA MALIK KHAN,
MALIK FARIDA KHALIK,
AHMED MR KHAN FARHAD ASIF &
KHAN PARVEEN FERAZ ...COMPLAINANT
a/w

6. COMPLAINT NO. CC006000000192799

RAJEEV KUMAR ...COMPLAINANTS
a/w

7. COMPLAINT NO. CC006000000192823

VANDANA P SHENOY ...COMPLAINANT
a/w

8. COMPLAINT NO. CC006000000193115

PIYUSH BATHWAL ...COMPLAINANT
a/w

9. COMPLAINT NO. CC006000000193116

AAYUSH BATHWAL ...COMPLAINANTS
a/w

10. COMPLAINT NO. CC006000000194227

ASHA KHADARIA ...COMPLAINANT
a/w

11. COMPLAINT NO. CC006000000194593

RANGMAHAL MERCHANDISE
PRIVATE LIMITED (*Through*
Authorized Representative Jagdish Purohit)

...COMPLAINANT

VS

MONARCH & QURESHI BUILDERS

...RESPONDENT

MAHARERA PROJECT REGISTRATION NO. P51800009046

ORDER

January 13, 2023

(Date of hearing- 04.10.2022 matters were reserved for orders)

Coram: Shri Ajoy Mehta, Chairperson, MahaRERA

Advocate Vedchetan Patil for Complainant @ Sr. No. 1

Advocate Godfrey Pimenta for Complainant @ Sr. No. 2 to 5 & 7

Advocate Sunil Kewalramani for Complainants @ Sr. Nos. 6

Advocate Rakesh for Complainants @ Sr. No. 8 & 9

Advocate Himanshu Agarwal for Complainant @ Sr. No. 10 & 11

Advocate Makarand Raut present for Respondents @ Sr. Nos. 1 to 11

1. The Complainants are home buyers and Allottees within the meaning of Section 2(d) of the Real Estate (Regulation and Development) Act, 2016 (hereinafter referred to as the "**said Act**") of Real Estate Regulatory Authority (hereinafter referred to as the "**RERA**") and the Respondent is the Promoter/Developer within the meaning of Section 2 (zk) of the said Act. The Respondent is registered as the Promoter of the Project namely "**COSMIC**" under section 5 of the said Act bearing **MAHARERA Project Registration No. P51800009046** (hereinafter referred to as the "**said Project**"). On the MahaRERA Project registration webpage the proposed completion date of the said Project is mentioned as 31.12.2017, revised proposed completion date is mentioned as 30.12.2024.

2. The Complainants are seeking the following reliefs:

SR. NO.	COMPLAINT NO.	RELIEFS SOUGHT
1.	CC006000000171952	a. The Hon'ble Authority be pleased to direct the Respondent to pay to the Complainants an amount of Rs. 1,02,14,036 /- (Rupees One Crore two lakh fourteen thousand thirty six only) paid towards purchase of Flat along with car parking and for stamp duty and other

SR. NO.	COMPLAINT NO.	RELIEFS SOUGHT
		charges, along with interest as per the provisions of the Act for every month of delay in refunding the amount till actual realization; b. The Hon'ble Authority be pleased to direct the Respondent to create a charge in one of the apartments in the new project of equivalent size as the one promised to the Complainant being 1990 sq. Ft. (Carpet area of 1335 sq. ft) till actual realization of the amount paid by the Complainant being Rs. 1,02,14,036 /- (Rupees One Crore two lakh fourteen thousand thirty six only) along with interest at the rate as per the provisions of the Act and rules thereto for every month of delay in refunding the amount till actual realization; c. The Hon'ble Authority be pleased to exercise its discretionary power conferred under section 71 and 72 of the Act to grant compensations and direct the Respondent to pay to the Complainant a sum of Rs. 50,00,000/- (Rupees Fifty lakhs only) as compensation for the mental torture, harassment and loss of money due to the anticipation of prolonged possession of the said apartment which ultimately never happened; d. Any other reliefs as the Hon'ble Authority may deem fit; and Cost of this Application.
2.	CC006000000182002	a) The Respondent to handover the possession of the said Flat to the Complainant within a reasonable period of time; b) Pending hearing and disposal of this complaint, the Respondent their men, agents or servants be restrained by order of Permanent Injunction from creating third party agreements in respect of the said Flat No. 2103, on 21st Floor, Wing C, admeasuring 2270 sq. ft. in building Evershine Cosmic, being constructed on plot of land bearing CTS Nos.720, 724, 582, 583, 584, 585, 651, 572, 573, 574 and 579 of Village Oshiwara, Taluka Andheri, Mumbai Suburban District any manner whatsoever; c) The Respondent to compensate the Complainants for the loss caused to the Complainant under Section 12 of the RERA, due to non-execution of the Agreement for Sale of the said flat in terms of Section 4 of MOFA and Section 13 of RERA; d) The Respondent to pay interest at the prescribed rate to the Complainant for every month of delay from 1st July 2013 till the actual date of handover of possession of the said flat on the amounts more particularly stated in Annexure C attached hereto; e) For mental agony/harassment; f) For cost of this complaint be provided for; g) For interim and ad-interim relief in terms of prayers (b) & (d) above; h) Such other and further reliefs as deem fit. Complainant Date: 28.12.2019
3.	CC006000000182100	a) The Respondent to handover the possession of the said Flat to the Complainants within a reasonable period of time; b) The Respondent to pay interest at the prescribed rate to the Complainants for every month of delay from 1st August 2013 till the actual date of handover of possession of the said said Flat No. 2102, on 21st Floor, Wing B, admeasuring 1610 sq. ft. in building Evershine Cosmic, being constructed on plot of land bearing CTS Nos.720, 724, 582, 583, 584, 585, 651, 572, 573, 574 and 579 of Village Oshiwara, Taluka Andheri, Mumbai Suburban District on the amounts more particularly stated in Annexure F attached hereto; c) For mental agony/harassment; d) For cost of this complaint be provided for;

SR. NO.	COMPLAINT NO.	RELIEFS SOUGHT
		<i>e) Such other and further reliefs as deem fit. Complainants Date: 07.01.2020</i>
4.	CC006000000192231	<i>a) The Respondent to handover the possession of the said Flat to the Complainants within a reasonable period of time;</i> <i>b) The Respondent to pay interest at the prescribed rate to the Complainants for every month of delay from 1st July 2008 till the actual date of handover of possession of the said Flat No. 2202, on 22nd Floor, Wing A, admeasuring 1294 sq. ft. carpet area in building Evershine Cosmic, being constructed on plot of land bearing CTS Nos.720, 724, 582, 583, 584, 585, 651, 572, 573, 574 and 579 of Village Oshiwara, Taluka Andheri, Mumbai Suburban District on the amounts more particularly stated in Annexure D attached hereto;</i> <i>c) For mental agony/harassment;</i> <i>d) For cost of this complaint be provided for;</i> <i>e) Such other and further reliefs as deem fit. Complainants Date: 18.01.2020</i>
5.	CC006000000192293	<i>a) The Respondent to handover the possession of the said Flat to the Complainants within a reasonable period of time;</i> <i>b) the Respondent to pay interest at the prescribed rate to the Complainants for every month of delay from 1st May 2019 till the actual date of handover of possession of the said Flat No. 2004, on 20th Floor, Wing B, admeasuring 735 sq. ft. carpet area in building Evershine Cosmic, being constructed on plot of land bearing CTS Nos.720, 724, 582, 583, 584, 585, 651, 572, 573, 574 and 579 of Village Oshiwara, Taluka Andheri, Mumbai Suburban District on the amounts more particularly stated in Annexure C attached hereto;</i> <i>c) For mental agony/harassment;</i> <i>d) For cost of this complaint be provided for;</i> <i>e) Such other and further reliefs as deem fit. Complainants Date: 25.01.2020</i>
6.	CC006000000192799	<i>a) That the Respondent be directed u/s. 18 of RERA to pay interest (2% + SBI's highest MCLR) to the complainants starting from 1st January 2014 on the amount of Rs. 67,27,000/- (Rupees Sixty Seven Lakhs Twenty Seven Thousand Only) till the possession of the flat is handed-over to the complainants with Occupancy certificate.</i> <i>b) That the Respondent be directed to pay Rs.50,000/- (Rupees Fifty Thousand Only) to the Complainants, towards cost of complaint.</i> <i>c) That the Respondent be directed to pay compensation of Rs.2,00,000/- (Rupees Two Lakhs Only) to the Complainants, towards inconvenience, mental trauma and harassment caused to Complainants.</i> <i>d) That the Hon'ble MahaRERA authority may grant any other and further relief/s, as this Hon'ble Authority may deem fit and proper in the nature and circumstances of the case, in favour of the complainants.</i>
7.	CC006000000192823	<i>a) the Respondent to handover the possession of the said Flat to the Complainant within a reasonable period of time;</i> <i>b) the Respondent to pay interest at the prescribed rate to the Complainant for every month of delay from 1st May 2014 till the actual date of handover of possession of the said Flat No. 2101, on 21st Floor, Wing B, admeasuring 966 sq. ft. in building Evershine Cosmic, being constructed on plot of land bearing CTS Nos.720, 724, 582, 583, 584, 585, 651, 572, 573, 574 and 579 of Village Oshiwara,</i>

SR. NO.	COMPLAINT NO.	RELIEFS SOUGHT
		Taluka Andheri, Mumbai Suburban District, on the amounts more particularly stated in Annexure E attached hereto; c) For mental agony/harassment; d) For cost of this complaint be provided for; e) Such other and further reliefs as deem fit. Complainant Date: 02.03.2020
8.	CC006000000193115	1. Failure to hand over possession of the said flat on the due date.
9.	CC006000000193116	2. Failure to admit the complaint as member of association/ society/ Co-operative Society.
10.	CC006000000194227	1. That the Respondent be directed to Rescission of the Agreement of sale dated 19 December 2012 along with Supplemental Agreement for Sale dated 6 December 2013 as there has been an inordinate delay in completing the construction of the said Flat; 2. That the Respondent be directed to pay the entire consideration of Rs.60,00,000/- (Rupees Sixty Lacs) and stamp duty, VAT & registration charges amounting to Rs 11,11,192/- (Rupees Eleven Lacs Eleven Thousand One Hundred and Ninety-Two) along with interest rate of 12% p.a. i.e. interest on Rs. 71,11,192/- (Rupees Seventy-One Lacs Eleven Thousand One Hundred and Ninety-Two) from the respective date of payment till the date of receipt of payment. 3. Alternatively, the Respondent be directed to compensate the Complainant at the current market value (i.e. Rs. 35000/sq. ft) of the flat. 4. That pending the disposal of the complaint, the Respondent be directed to deposit the entire consideration amount within the custody of the Authority. 5. That the Respondent be directed to pay compensation of Rs. 5,00,000/- (Rupees Five Lacs) towards the mental agony and harassment caused as well as costs of the present proceedings. 6. That the Respondent be directed to pay compensation of Rs. 3,00,000/- (Rupees Three Lacs) towards compensation for rental amount which the Complainant has paid all throughout. 7. Interim and ad-interim reliefs in terms of clauses 5.1 to 5.6 till the disposal of the application. 8. Any other reliefs the Hon'ble Adjudicatory Authority deems just and reasonable in the facts and circumstances of the present case.
11.	CC006000000194593	1. That the Respondent be directed to Rescission of the Agreement of sale dated 19 December 2012 along with supplemental Agreement for sale dated 06 June 2014 as there has been an inordinate delay in completing the construction of the said Flat; 2. That the Respondent be directed to pay the entire consideration of Rs.60,00,000/- (Rupees sixty Lacs) and stamp duty, VAT, registration and other charges amounting to Rs 13,01,240/- (Rupees Thirteen Lacs One Thousand Two Hundred Forty) along with interest rate of 12% p.a. i.e. interest on Rs. 73,01,240/- (Rupees Seventy-Three Lacs one Thousand Two Hundred Forty) from the respective date of payment till the date of receipt of payment. 3. Alternatively, the Respondent be directed to compensate the Complainant at the current market value (i.e. Rs. 35000/sq. ft) of the flat. 4. That pending the disposal of the complaint, the Respondent be directed to deposit the entire consideration amount within the custody of the Authority.

SR. NO.	COMPLAINT NO.	RELIEFS SOUGHT
		5. That the Respondent be directed to pay compensation of Rs. 5,00,000/- (Rupees Five Lacs) towards the mental agony and harassment caused as well as costs of the present proceedings. 6. That the Respondent be directed to pay compensation of Rs. 3,00,000/- (Rupees Three Lacs) towards compensation for rental amount which the Complainant has paid all throughout. 7. Interim and ad-interim reliefs in terms of clauses 5.1 to 5.6 till the disposal of the application. 8. Any other reliefs the Hon'ble Adjudicatory Authority deems just and reasonable in the facts and circumstances of the present case.

3. All the complaints were heard by this Authority on 04.10.2022 wherein the following roznama was recorded:

SR. NO.	COMPLAINT NO.	ROZNAMA PASSED
1.	CC006000000171952	"Both Parties are present. The Complainant avers that he has paid around Rs. 1.02 crores. The allotment letter was issued on 03.11.2009. An agreement of sale was entered into on 28.03.2013 and was registered on 26.12.2013. The date of possession was given as 31.12.2014. In view of the delay, the Complainant now seeks to exit the project together with interest and compensation. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties, they sought deferred payments from SRA. The same was given but subsequently discontinued making it difficult for them. The Respondent avers that refunds if given at this juncture would only jeopardize the project. They have all intention to complete the project and the new date of completion mentioned on the RERA website is December, 2024. The Respondent avers that they are attempting to complete it on or before the mentioned date. The Respondent seeks concession on the moratorium period that has been offered by RERA. As the delayed period falls during the pandemic. The Respondent also pleads that if the Authority decides to pay interest the same should be done only subsequent to OC as done in earlier orders. The Parties are at liberty to file written submissions, if any, by the 21.10.2022. Subsequent to which, the matter will be reserved for orders."
2.	CC006000000182002	"Both Parties are present.
3.	CC006000000182100	The Complainant at the outset mentions that in spite of three adjournments, the Respondent failed to appear before the Conciliation Forum. There was an agreement between Evershine and the present developer. There were disputes and final consent terms came to be executed in 2014. The Complainant avers that the Respondent constructed illegal floors and this has been the cause of delay. The agreements and the letter of allotments are dated between 2008 to 2013. The Complainant now seeks interest on delayed possession and seeks possession at an early date. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties,
4.	CC006000000192231	
5.	CC006000000192293	The Complainant now seeks interest on delayed possession and seeks possession at an early date. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties,

SR. NO.	COMPLAINT NO.	ROZNAMA PASSED
		<i>they sought deferred payments from SRA. The same was given but subsequently discontinued making it difficult for them. The Respondent avers that refunds if given at this juncture would only jeopardize the project. They have all intention to complete the project and the new date of completion mentioned on the RERA website is December, 2024. The Respondent avers that they are attempting to complete it on or before the mentioned date. The Respondent seeks concession on the moratorium period that has been offered by RERA. As the delayed period falls during the pandemic. The Respondent also pleads that if the Authority decides to pay interest the same should be done only subsequent to OC as done in earlier orders. The Parties are at liberty to file written submissions, if any, by the 21.10.2022. Subsequent to which, the matter will be reserved for orders."</i>
6.	CC006000000192799	<i>"Both Parties are present. The Complainant states that an agreement of sale was executed on 10.08.2009, wherein the date of possession was left as blank. A Rectification to the same was carried out in 2011 and at that point of time, orally it was promised that date of possession would be December 2013. From 1st January, 2014 they were promised certain rents in view of the delay in the project and these rents have not been paid in total. There is a delay in possession and the Complainant now seeks that the unpaid rents should be paid and interest on delayed possession should also be paid. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties, they sought deferred payments from SRA. The same was given but subsequently discontinued making it difficult for them. The Respondent avers that refunds if given at this juncture would only jeopardize the project. They have all intention to complete the project and the new date of completion mentioned on the RERA website is December, 2024. The Respondent avers that they are attempting to complete it on or before the mentioned date. The Respondent seeks concession on the moratorium period that has been offered by RERA. As the delayed period falls during the pandemic. The Respondent also pleads that if the Authority decides to pay interest the same should be done only subsequent to OC as done in earlier orders. The Respondent avers that since there is now an agreement to pay rents in view of the delay, the case before RERA therefore becomes infructuous. The Complainant cannot claim both rents for delay and also relief in terms of interest for delay under section 18 of RERA. The Complainant avers that he is only putting facts on record, but is seeking interest on delay and not rents from the Authority. The Complainant also avers that through a letter from the Respondent he was promised possession on December, 2013. The Parties are at liberty to file written submissions, if any, by the 21.10.2022. Subsequent to which, the matter will be reserved for orders."</i>
7.	CC006000000192823	<i>"Both Parties are present. The Complainant at the outset mentions that in spite of three adjournments, the Respondent failed to appear before the Conciliation Forum. There was an agreement between Evershine and the present developer. There were disputes and final consent terms came to be executed in 2014. The Complainant avers that the Respondent constructed illegal floors and this has been the cause of delay. The agreements and the letter of allotments are dated between 2008 to 2013.</i>

SR. NO.	COMPLAINT NO.	ROZNAMA PASSED
		The Complainant now seeks interest on delayed possession and seeks possession at an early date. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties, they sought deferred payments from SRA. The same was given but subsequently discontinued making it difficult for them. The Respondent avers that refunds if given at this juncture would only jeopardize the project. They have all intention to complete the project and the new date of completion mentioned on the RERA website is December, 2024. The Respondent avers that they are attempting to complete it on or before the mentioned date. The Respondent seeks concession on the moratorium period that has been offered by RERA. As the delayed period falls during the pandemic. The Respondent also pleads that if the Authority decides to pay interest the same should be done only subsequent to OC as done in earlier orders. The Parties are at liberty to file written submissions, if any, by the 21.10.2022. Subsequent to which, the matter will be reserved for orders."
8.	CC006000000193115	"Both Parties are present. The Complainant states that an agreement of sale was executed in December, 2012 and the date of possession was promised as 31.01.2014. The Complainant further states that has paid around 86% of the amount. There is a delay in possession and the Complainant now seeks early possession together with interest on delayed possession. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties, they sought deferred payments from SRA. The same was given but subsequently discontinued making it difficult for them. The Respondent avers that refunds if given at this juncture would only jeopardize the project. They have all intention to complete the project and the new date of completion mentioned on the RERA website is December, 2024. The Respondent avers that they are attempting to complete it on or before the mentioned date. The Respondent seeks concession on the moratorium period that has been offered by RERA. As the delayed period falls during the pandemic. The Respondent also pleads that if the Authority decides to pay interest the same should be done only subsequent to OC as done in earlier orders. The Parties are at liberty to file written submissions, if any, by the 21.10.2022. Subsequent to which, the matter will be reserved for orders."
9.	CC006000000193116	"Both Parties are present. The Complainant states that an agreement of sale was executed in December, 2012 and the date of possession was promised as 31.01.2014. The Complainant further states that has paid full amount. There is a delay in possession and the Complainant now seeks early possession together with interest on delayed possession. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties, they sought deferred payments from SRA. The same was given but subsequently discontinued making it difficult for them. The Respondent avers that refunds if given at this juncture would only jeopardize the project. They have all intention to complete the project and the new date of completion mentioned on the RERA website is

SR. NO.	COMPLAINT NO.	ROZNAMA PASSED
		December, 2024. The Respondent avers that they are attempting to complete it on or before the mentioned date. The Respondent seeks concession on the moratorium period that has been offered by RERA. As the delayed period falls during the pandemic. The Respondent also pleads that if the Authority decides to pay interest the same should be done only subsequent to OC as done in earlier orders. The Parties are at liberty to file written submissions, if any, by the 21.10.2022. Subsequent to which, the matter will be reserved for orders."
10.	CC006000000194227	"Both Parties are present.
11.	CC006000000194593	The Complainant states agreement of sale was signed in 2012. Date of possession was 2016. There is no permission for the 26 floor on which he has been allotted. He therefore seeks to exit the project and seeks refund together with interest, taxes, stamp duty charges and other duties paid. The Respondent avers that this is a SRA project and they have completed 6 rehab buildings and are at a fairly advanced stage of completion of the building pertaining to this matter. The Respondent avers that in view of the Covid and other difficulties, they sought deferred payments from SRA. The same was given but subsequently discontinued making it difficult for them. The Respondent avers that refunds if given at this juncture would only jeopardize the project. They have all intention to complete the project and the new date of completion mentioned on the RERA website is December, 2024. The Respondent avers that they are attempting to complete it on or before the mentioned date. The Respondent seeks concession on the moratorium period that has been offered by RERA. As the delayed period falls during the pandemic. The Respondent also pleads that if the Authority decides to pay interest the same should be done only subsequent to OC as done in earlier orders. The Parties are at liberty to file written submissions, if any, by the 21.10.2022. Subsequent to which, the matter will be reserved for orders."

4. The brief facts as submitted by the Complainants in all the complaints are tabulated for ease of reference hereinbelow:

SR. NO.	COMPLAINT NOS.	FLAT NO./ WING	DATE OF AFS ¹	POSSESION DATE (AFS)	TOTAL CONSIDERATION (RS.)	TOTAL AMOUNT PAID (RS.)
1.	CC006000000171952	2002/A	28.03.2013	31.12.2014	1,07,46,000	1,02,14,036
2.	CC006000000182002	2103/C	29.12.2020	blank	2,37,21,500	1,39,10,000
3.	CC006000000182100	2102/B	25.07.2011	blank	96,60,000	51,39,658
4.	CC006000000192231	2202/A	20.12.2007 read with SA ² - 29.09.2011	blank	1,19,40,000	1,19,40,000
5.	CC006000000192293	2004/B	27.05.2013 read with SA- 30.03.2017	On or before 30.04.2019	1,22,00,000	43,19,000

¹ AFS – agreement for sale (abbreviation applicable throughout the order)

² SA – Supplementary agreement (abbreviation applicable throughout the order)

SR. NO.	COMPLAINT NOS.	FLAT NO./ WING	DATE OF AFS ¹	POSSESION DATE (AFS)	TOTAL CONSIDERATION (RS.)	TOTAL AMOUNT PAID (RS.)
6.	CC006000000192799	2101/A	Deed of rectification- 03.08.2011	blank	75,00,000	67,27,000
7.	CC006000000192823	2101/B	13.04.2012	blank	88,55,000	54,00,000
8.	CC006000000193115	2003/A	22.12.2012	On or before 31.01.2014	1,07,46,000	1,06,13,917
9.	CC006000000193116	2103/A	24.12.2012	On or before 31.01.2014	1,07,46,000	1,10,67,767
10.	CC006000000194227	2601/C	19.12.2012 read with SA -06.12.2013	blank	60,00,000	61,11,192
11.	CC006000000194593	2501/C	19.12.2012 read with SA- 06.06.2014	31.12.2016	60,00,000	67,70,000

5. The brief submissions of the Respondent are as follows:

- a. That the said Project is a part of a redevelopment project under the Slum rehabilitation Authority (SRA) comprising of 6 rehab building which are completed and occupation certificate (OC) for the same has also been received and 3 towers of saleable component. The 3 towers A, B & C also are partly completed up to 17 floors and OC for the same has also been received and the apartments are handed over to the Allottees. Thus, the said Project is registered only for the floors 18 to 30 in all the 3 towers (A, B & C).
- b. Further, the commencement certificate (CC) was granted by the concerned authority for construction only up to 17th floor. The CC for the rest of the floors is pending before the concerned authority.
- c. The scheme being an SRA scheme, the Promoter/Developer was required to complete certain amenities and only when the completion of these amenities the concerned Planning Authority grants further permission for construction of sale building. However, due to some unforeseen circumstances, construction of other amenities by the Promoter/Developer could not be completed in time and therefore the concerned authority had issued a stop work notice to the Respondent Developer in the said Project.

- d. That the delay in construction is due to the delay caused by the SRA in giving necessary permissions and hence it cannot be attributed to the Respondent.
 - e. Respondent is entitled to benefits of moratorium period due to Covid pandemic for relaxation of compensation, if any, payable in accordance with Order 14/2020 and Order No.21/2021.
 - f. All complaints are to be dismissed as the completion date as per RERA is 30.12.2024 which is still to arrive and thus there is no violation under section 18 of the said Act.
 - g. That if the Respondent is compelled to pay the compensation which will add further financial burden on the Respondent and delay the said Project even further, which will cause irreparable loss to the Developer and other allottees.
 - h. The Respondent assures that the Purchasers will be compensated properly and the said Project will be completed soon and accordingly possession will be handed over.
6. From the facts and the submissions made by the Parties hereinabove, the issues that needs to be considered are as follows:
- A. Whether there is delay in handing over possession as per section 18 of the said Act?*
 - B. Whether the Complainants can seek remedy under section 18 of the said Act i.e. either withdrawal from the said Project with refund of amounts paid plus interest OR possession of the apartments purchased by them along with interest for delay in handover of possession?*
7. In order to answer the above issue at **para No.6(A)**, the following observations are noteworthy:
- a. In this regard, it is pertinent to examine “**possession**” as contemplated under section 18 of the said Act: In this regard section 18 is reproduced hereinbelow:
*“18. (1) If the promoter fails to complete or is unable to give possession of an apartment, plot or building, –
 (a) in accordance with the terms of the agreement for sale or, as the case may be, duly completed by the date specified therein; or*

(b) due to discontinuance of his business as a developer on account of suspension or revocation of the registration under this Act or for any other reason, he shall be liable on demand to the allottees, in case the allottee wishes to withdraw from the project, without prejudice to any other remedy available, to return the amount received by him in respect of that apartment, plot, building, as the case may be, with interest at such rate as may be prescribed in this behalf including compensation in the manner as provided under this Act:

Provided that where an allottee does not intend to withdraw from the project, he shall be paid, by the promoter, interest for every month of delay, till the handing over of the possession, at such rate as may be prescribed."

- b. From the plain reading of section 18 it is very clear that if the Promoter (Respondent herein) fails to handover possession as per the terms of the agreements for sales by the specified date therein, the Allottees (*all the Complainants herein*) have a choice either to withdraw from the said Project or stay with the said Project.
- c. In the captioned complaints Sr. Nos. 1, 10 & 11 are desirous to withdraw from the said Project and seek refund of the amounts paid by them along with interest (including compensation). The remaining complaints i.e. sr. Nos. 2 to 9 are desirous to stay in the said project and hence are seeking possession with interest for every month of delay till handover of possession.
- d. Further all the Complainants herein have entered into registered agreements for sale with the Respondent herein and hence as per provisions of section 18 the date of possession specified in the agreements for sale shall prevail over the date specified before MahaRERA. The Authority has no mandate to rewrite agreements of sale. Hence the date of completion as agreed by the Parties in the agreements for sale shall be sacrosanct, notwithstanding any date that may have been declared at the time of registration. However, in case of those Allottees where the date of possession is left blank in their agreements for them the Authority is left with no option but to take the date of possession to be that which the Promoter / Respondent herein has stated as proposed completion date while registering with RERA i.e. **31.12.2017**. The following table shall list the specific date of possession as per the agreements for sale in each case herein:

SR. NO.	COMPLAINT NOS.	DATE OF AFS	POSSESSION DATE (AFS)	SPECIFIC DATE OF POSSESSION
1.	CC006000000171952	28.03.2013	31.12.2014	31.12.2014
2.	CC006000000182002	29.12.2020	blank	31.12.2017 (RERA)
3.	CC006000000182100	25.07.2011	blank	31.12.2017 (RERA)
4.	CC006000000192231	20.12.2007 read with SA- 29.09.2011	blank	31.12.2017 (RERA)
5.	CC006000000192293	27.05.2013 read with SA- 30.03.2017	On or before 30.04.2019	30.04.2019
6.	CC006000000192799	Deed of rectification- 03.08.2011	blank	31.12.2017 (RERA)
7.	CC006000000192823	13.04.2012	blank	31.12.2017 (RERA)
8.	CC006000000193115	22.12.2012	On or before 31.01.2014	31.01.2014
9.	CC006000000193116	24.12.2012	On or before 31.01.2014	31.01.2014
10.	CC006000000194227	19.12.2012 read with SA - 06.12.2013	blank	31.12.2017 (RERA)
11.	CC006000000194593	19.12.2012 read with SA-06.06.2014	31.12.2016	31.12.2016

- e. Thus, from the above it is clear that there is delay in handing over possession by the Respondent and hence there is violation of section 18 of the said Act which makes the Complainants herein entitled to the reliefs therein. The answer to issue at **para No.6(A)**, is in affirmative.
- f. Before moving ahead, it is pertinent to note her that the provisions of section 18 are clear that if the Respondents fail to handover possession by the specified date as mentioned in the agreements for sale or as the case may be i.e. as per RERA, they shall be liable to pay interest to the Complainants and this provision does not provide for any waiver or disclaimer or exception. It is an absolute provision. The Respondents herein states that delays have been because of SRA, the Planning Authority and as such cannot be attributed to them. While the Authority appreciates the complexity involved in executing a real estate project involving slum rehabilitation, it also would like to put on record that there is nothing new in these complexities and every Developer taking up such projects is well aware of them. Thus, while declaring a date, the Promoter (*Respondents herein*) is required to conduct due prudence on the

Project. The Allottees (*Complainants herein*) have no means to know the issues and problems involved and makes a booking on the sole criteria of the declaration of completion date by the Developer/ Promoter. This is the very reason that section 18 remedy does not come with any caveats. This remedy has been made available to ensure that Promoters (*Respondents herein*) make doable commitments and not frivolous promises, which they then try to wriggle out of by appropriating blame on other entities. Reasons for delay as stated by the Respondents can be grounds for consideration with regard to seeking extension of the completion date under the said Act for the said Project and not otherwise.

- g. It is also pertinent to note that the Respondent were aware of the challenges faced in an SRA project and the same cannot be cited for denying interest due to delay. It must be noted that real estate projects do carry risks of litigations. It is for the Promoter (*Respondent herein*) to cover and carry these risks through meticulous prudence checks. The home buyer (*Complainants herein*) on payment of consideration should be assured of delivery of the premises as promised and, on the date, promised. It is not for the Allottees (*Complainants herein*) to ascertain the risk and apportion the same upon themselves. In fact, the essence of the said Act has been to derisk the project as far as the Allottee/ home buyer is concerned. Thus, the reasons cited by the Respondent herein for delay even if correct and valid cannot be used as a mitigating circumstance to reduce the liability of the Promoter towards the Allottees (*Complainants herein*). This is a business risk that the real estate Promoter has to carry.

- 8. In order to answer the above issue at **para No.6(B)**, the following observations are noteworthy:
 - a. From the answer to issue No. 6(A) it is clear that there is violation of section 18 of the said Act, and hence the Complainants have an option under the same section to choose either to withdraw from the said Project and / or stay in the same Project.

b. The following Complainants are desirous of withdrawing from the said Project:

SR. NO.	COMPLAINT NOS.	DATE OF AFS	POSSESSION DATE (AFS)	SPECIFIC DATE OF POSSESSION
1.	CC006000000171952	28.03.2013	31.12.2014	31.12.2014
10.	CC006000000194227	19.12.2012 read with SA - 06.12.2013	blank	31.12.2017 (RERA)
11.	CC006000000194593	19.12.2012 read with SA-06.06.2014	31.12.2016	31.12.2016

c. The following Complainants are desirous of staying in the said Project:

SR. NO.	COMPLAINT NOS.	DATE OF AFS	POSSESSION DATE (AFS)	SPECIFIC DATE OF POSSESSION
2.	CC006000000182002	29.12.2020	blank	31.12.2017 (RERA)
3.	CC006000000182100	25.07.2011	blank	31.12.2017 (RERA)
4.	CC006000000192231	20.12.2007 read with SA- 29.09.2011	blank	31.12.2017 (RERA)
5.	CC006000000192293	27.05.2013 read with SA- 30.03.2017	On or before 30.04.2019	30.04.2019
6.	CC006000000192799	Deed of rectification- 03.08.2011	blank	31.12.2017 (RERA)
7.	CC006000000192823	13.04.2012	blank	31.12.2017 (RERA)
8.	CC006000000193115	22.12.2012	On or before 31.01.2014	31.01.2014
9.	CC006000000193116	24.12.2012	On or before 31.01.2014	31.01.2014

d. With regard the remedy under section 18 of the said Act for the Complainants at Sr. Nos. 1, 10 & 11 seeking to withdraw from the said Project, they are allowed to withdraw and claim interest from the dates mentioned in the table below against each Complainant as per the date of possession mentioned in each agreement for sale and / or in case of absence of the possession date in the agreements, the proposed completion date mentioned in RERA by the Respondent becomes relevant:

SR. NO.	COMPLAINT NOS.	DATE OF AFS	SPECIFIC DATE OF POSSESSION	INTEREST APPLICABLE FROM
1.	CC006000000171952	28.03.2013	31.12.2014	01.01.2015
10.	CC006000000194227	19.12.2012 read with SA - 06.12.2013	31.12.2017 (RERA)	01.01.2018
11.	CC006000000194593	19.12.2012 read with SA-06.06.2014	31.12.2016	01.01.2017

- e. With regard the remedy under section 18 of the said Act for the Complainants at Sr. Nos. 2 to 9 seeking possession with OC of the apartments/ flats purchased by them in the said Project, they are allowed to claim interest from the dates mentioned in the table below against each Complainants as per the date of possession mentioned in each agreement for sale and / or in case of absence of the possession date in the agreements; the proposed completion date mentioned in RERA by the Respondent becomes relevant:

SR. NO.	COMPLAINT NOS.	DATE OF AFS	SPECIFIC DATE OF POSSESSION	INTEREST APPLICABLE FROM
2.	CC006000000182002	29.12.2020	31.12.2017 (RERA)	01.01.2018
3.	CC006000000182100	25.07.2011	31.12.2017 (RERA)	01.01.2018
4.	CC006000000192231	20.12.2007 read with SA- 29.09.2011	31.12.2017 (RERA)	01.01.2018
5.	CC006000000192293	27.05.2013 read with SA- 30.03.2017	30.04.2019	01.05.2019
6.	CC006000000192799	Deed of rectification- 03.08.2011	31.12.2017 (RERA)	01.01.2018
7.	CC006000000192823	13.04.2012	31.12.2017 (RERA)	01.01.2018
8.	CC006000000193115	22.12.2012	31.01.2014	01.02.2014
9.	CC006000000193116	24.12.2012	31.01.2014	01.02.2014

- f. In view of the above, the issue at **para No.6(B)** hereinabove is answered in affirmative.
- g. Further with regard claiming compensation for the monetary loss, mental harassment, mental torture and agony is concerned it is important to note that the Complainants have not placed on record any documents supporting monetary loss, mental harassment, mental torture and agony, thus, the plea for seeking compensation is rejected.

FINAL ORDER

In view of the observations hereinabove, the following order is passed:

- A. The Complainants at Sr. Nos. 1, 10 & 11 are allowed to withdraw from the said Project and claim interest from the dates mentioned in table at para No.8(d) at the rate as prescribed *under Rule 18 of the Maharashtra Real Estate (Regulation and*

Development) (Registration of Real Estate Projects, Registration of Real Estate Agents, Rate of Interest and Disclosures on Website) Rules 2017 till the amounts are realised.

- B. Further, the Respondent is also duty bound to cancel the agreements of the complaints at Sr. Nos. 1, 10 & 11 upon the refund of the amounts with interest.
- C. Needless to say, that Complainants at Sr. Nos. 1, 10 & 11 in case have taken any loans which have created lien on the apartments purchased by them, they shall be duty bound to settle the dues of the Financial Institution first, for releasing the apartments from the mortgage / lien so that it is free from any encumbrances.
- D. However, to ensure that the said Project is not jeopardised due to the outflow of finances and is completed keeping in mind the interest of the other buyers of the said Project at large, it is directed that the amounts of refund and the interest thereupon shall be paid by the Respondent to the Complainants at Sr. Nos. 1, 10 & 11 upon the OC being received for the said Project or on or before 30.12.2024 whichever is earlier. This shall be paid in 3 equal monthly instalments thereafter immediately. Needless to say, in case the Respondent so desires to pay the same earlier the period of interest calculation shall be from the dates mentioned in table at para No.8(d) up to the date of realisation of the refund with interest amounts.
- E. The Complainants at Sr. Nos. 2 to 9 are allowed to claim interest and entitled to seek interest for delay in possession from the dates mentioned in table at para No.8(e) at till handover of possession with OC at the rate as prescribed *under Rule 18 of the Maharashtra Real Estate (Regulation and Development) (Registration of Real Estate Projects, Registration of Real Estate Agents, Rate of Interest and Disclosures on Website) Rules 2017*.
- F. Further, with regard to the payment of interest, it is further directed that the Respondents are entitled to claim the benefit of “*moratorium period*” as mentioned in the Notifications / Orders Nos. 13, 14 and 21 dated 02.04.2020, 18.05.2020 and 06.08.2021 respectively issued by the MahaRERA. The

moratorium period shall be deducted from the total period for which interest is payable.

- G. Further the payments of interest for delay shall be set off against the payments of balance dues if any under each agreement for sale of the Complainants at Sr. Nos. 2 to 9 herein at the time of handover of possession with OC/completion certificate of the said Project i.e. by 30.12.2024 and if the said Project is not completed then the Respondents shall pay the accrued interest to the Complainants on 30.12.2024 and beyond the same the interest shall be paid on monthly basis on the 5th of every month till handover of possession with OC.
- H. No order as to cost.

AJOY
MEHTA
(Ajoy Mehta)
Chairperson, MahaRERA

Digitally signed
by AJOY MEHTA
Date: 2023.01.13
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